

ATTORNEY WORK PRODUCT: NOT DISCOVERABLE

By letter dated January 24th, TVA rejected EPMI's offer to continue performance under the MOPA at market prices. Accordingly, we sent a letter to TVA today, January 25th, at 4:00 notifying TVA that (1) EPMI was suspending deliveries under the MOPA effective Thursday, January 27th and (2) EPMI intended to exercise its termination rights unless TVA agreed to our proposal to continue performance under the MOPA pending a judicial determination of whether a Triggering Event occurred under the MOPA.

Please call me if you have any questions.

Copies of the letter will be distributed later today.

Elizabeth Sager
36349